

TENTATIVE RULING

Case: **Ballejos v. Safelite Fulfillment, Inc**
 Case No. CV2025-2879

Hearing Date: **March 11, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Safelite Fulfillment, Inc., Safelite Fulfillment, LLC, and Yael Torrez's demurrer to plaintiff Xavier Ballejos' first amended complaint is **CONTINUED** to **April 22, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
 Case No. CV2025-2253

Hearing Date: **March 11, 2026** **Department Eleven** **9:00 a.m.**

Defendants Donna Gary and Dielji, Inc.'s motion for relief from waiver of objections is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendants have not shown that they served responses in *substantial compliance* with the applicable discovery statutes. (Code Civ. Proc., §§ 2030.290, subd. (a)(1), 2031.300, subd. (a)(1); see Finnerty decl., ¶ 4, Exhibit A.) Further, defendants have not established that their failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(2), 2031.300, subd. (a)(2); see also *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459, 1467; *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; Finnerty decl., ¶ 4; Murtha decl., ¶¶ 9-10, Exhibits D & E.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.